

26CV04494 2. PETITION OF KIARA VAUGHN

County: sonoma

Division: Civil

Hearing date: 2026-08-26

Source URL:

<https://sonoma.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings/change-name-or-gender-courtroom-17>

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TENTATIVE RULING: MINOR ONLY ONE PARENT PETITIONING OTHER PARENT NOT SERVED AND NO PROOF OF PUBLICATION--Matter is CONTINUED to November 18, 2026 at 3:00 pm in Department 17 for Petitioner to file Proof of Service to the other parent or file a Declaration of Diligent search. Here, the petition is brought only by one parent. CCP section 1277(a)(4) requires that where "the other parent, if living, does not join in consenting thereto, the petitioner shall cause, not less than 30 days before the hearing, to be served notice of the time and place of the hearing or a copy of the order to show cause on the other parent pursuant to Section 413.10 , 414.10 , 415.10 , or 415.40." These sections address service of a summons which must generally be personally served. If the petitioner has grounds for believing such service cannot reasonably be accomplished and another method will result in actual notice, a supplemental declaration with those facts should be filed at least 5 court days before the hearing. Petitioner is to file proof that a copy of the Order to Show Cause was published in a local newspaper as required by Code of Civil Procedure section 1277(a)(2). Petitioner must obtain an amended OSC with the new hearing date for purposes of publication. If petitioner has proper proof of publication, they may file it with the court and request to appear at the hearing; if the Court is satisfied publication was proper, and no objection is raised, this matter will be approved.

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